

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): EMILY PIERCE, ESQ. BAR NO. 240084/ GREGORY J. BABCOCK, ESQ. BAR NO. 260437/ JORDAN COOK, ESQ. BAR NO. 179720/ KRISTEN KOHLER, ESQ. BAR NO. 263579/ LORI WILLIAMS, ESQ. BAR NO. 242985/ YVONNE MCGOVERN, ESQ. BAR NO. 193753 FIRM NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC STREET ADDRESS: 10680 TREENA ST., SUITE 500, CITY: SAN DIEGO, CA 92131 TELEPHONE NO.: 866/428-8102 FAX NO. (Optional): E-MAIL ADDRESS (Optional): LITIGATIONFILINGCA@PORTFOLIORECOVERY.COM ATTORNEY FOR (Name): PORTFOLIO RECOVERY ASSOCIATES, LLC	FOR COURT USE ONLY Electronically Filed by Superior Court of CA, County of Santa Clara, on 12/15/2025 12:00 AM Reviewed By: F. Miller Case #24CV430524 Envelope: 21943025
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 NORTH FIRST STREET MAILING ADDRESS: CITY AND ZIP CODE: SAN JOSE 95113 BRANCH NAME: SANTA CLARA SUPERIOR COURT	CASE NUMBER: 24CV430524
PLAINTIFF/PETITIONER: PORTFOLIO RECOVERY ASSOCIATES, LLC DEFENDANT/RESPONDENT: ELVIRA VALLEJO	
REQUEST FOR DISMISSAL	
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.	
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)	

1. TO THE CLERK: Please **dismiss** this action as follows:

- a. (1) ☐ With prejudice (2) ☒ Without prejudice (3) ☐ Without prejudice and with the court retaining jurisdiction (Code Civ. Proc., § 664.6)
- b. (1) ☐ Complaint (2) ☐ Petition
- (3) ☐ Cross-complaint filed on (date): by (name):
- (4) ☐ Cross-complaint filed on (date): on (name):
- (5) ☒ Entire action of all parties and all causes of action
- (6) ☐ Other (specify):*

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: 12/12/2025

EMILY PIERCE, ESQ. BAR NO. 240084

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.



(SIGNATURE)

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given. †

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

If item 1a (3) is checked, all parties must sign.
 If a cross-complaint or Response-Marriage/Domestic Partnership (form FL120) seeking affirmative relief is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

Attorney or party without attorney for:

- ☐ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

☐ Check here and use form MC-025 or a separate page for additional signatures. Include date, printed name, and party information.

4. ☒ Dismissal entered as requested on (date): 12/15/2025 12:00 AM
5. ☐ Dismissal entered on (date): as to only (name):
6. ☐ Dismissal **not entered** as requested for the following reasons (specify):
7. a. ☒ Attorney or party without attorney notified on (date): 12/15/2025 12:00 AM
- b. ☐ Attorney or party without attorney not notified. Filing party failed to provide

☐ a copy to be conformed ☐ means to return conformed copy

Date: 12/15/2025 12:00 AM

Clerk, by F. Miller, Deputy

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PLAINTIFF/PETITIONER: PORTFOLIO RECOVERY ASSOCIATES, LLC
 DEFENDANT/RESPONDENT: ELVIRA VALLEJO

CASE NUMBER:
 24CV430524

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and court costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: 12/12/2025

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY MAKING DECLARATION)

(SIGNATURE)